

## Hazi Rasid Ali v. State of U.P. and Others

Allahabad High Court · Division Bench · 1 February 2023 · Writ-C No. 40495 of 2022 · **Writ disposed after theft recovery withdrawn; liberty to pass a fresh Supply Code order after hearing.**

### HEADNOTE

The Allahabad High Court disposed of a writ challenging a theft-of-electricity recovery certificate after the Electricity Department withdrew the recovery and undertook to pass a fresh order after hearing the consumer. Liberty was given to proceed strictly in accordance with the procedure prescribed under the Electricity Supply Code, 2005. The Court did not examine the theft allegation or the withdrawn recovery on merits.

### FACTUAL SUMMARY

Hazi Rasid Ali challenged a recovery certificate dated 8 September 2022 issued by respondent No. 3 in a theft-of-electricity matter. On 13 January 2023 the Court directed the Electricity Department to produce any provisional and final assessment orders. After a further listing, Department counsel stated on 1 February 2023 that the impugned recovery had been withdrawn and that a fresh order would be passed after hearing the petitioner.

### HOLDING-UNITS

#### HOLDING-UNIT · UP-2005

theft recovery withdrawn; fresh order after hearing

#### HOLDING

Where the licensee withdraws a recovery certificate issued in a theft-of-electricity case and undertakes to pass a fresh order after hearing the consumer, the writ challenging that recovery is disposed of with liberty to the licensee to pass a fresh order strictly in accordance with the procedure prescribed under the Electricity Supply Code, 2005. ¶ 3

**FLAG** The order invokes the Electricity Supply Code, 2005 generally and does not identify a clause.

### PRINCIPLE TAGS

**fresh-order-after-hearing-supply-code-procedure** After the theft recovery was withdrawn, the Court confined the licensee to a fresh order only after opportunity of hearing and strictly under the 2005 Supply Code, without deciding the theft or the bill. ¶ 3

### NOT DECIDED — NEGATIVE AUTHORITY

#### NOT DECIDED — WHETHER THEFT OF ELECTRICITY WAS COMMITTED, AND THE VALIDITY OR QUANTUM OF ANY ASSESSMENT OR RECOVERY

The Court accepted the Department's statement that the recovery had been withdrawn and left a fresh order to the licensee. ¶ 3